

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUNJUN LUO,

Petitioner

VS.

ZHENG CHIU CHAN,

Respondent

) Case Number: FDI-26-802522

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Junjun Luo and Respondent Zheng Chiu Chan.
- 2) On January 29, 2026, Petitioner filed a Request for Order (RFO) seeking orders for spousal support and attorney fees. Petitioner requests \$2,500 per month in pendente lite spousal support and \$10,000 in attorney fees.
- 8) On January 29, 2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Married filing jointly; 2 exemptions
 - b. Other Party's Income: Blank
 - c. Average Monthly Income: (Unemployed since 03/11/19 – Alleges housewife entirety of marriage.)
 - d. Cash and checking accounts: Blank
 - e. Total Expenses: \$4,500.00/month (Proposed Needs)
 - f. Attorney Fees Paid: \$6,500.00/month.

1 9) On March 3, 2026, Respondent filed an Income and Expense Declaration, which includes the
2 following information:

3 g. Filing Status: Married filing jointly; 2 exemptions

4 h. Other Party's Income: \$0.00

5 i. Average Monthly Income: \$4200.00/month.

6 j. Cash and checking accounts: \$200.00

7 k. Total Expenses: Blank

8 l. Attorney Fees Paid: Blank

9 3) The Court notes Respondent did not file a Responsive Declaration.

10 **B. Findings and Order**

11 1) Petitioner's request for Family Code section 2030 attorney's fees is DENIED. Respondent does
12 not have the ability to pay any of Petitioner's attorney's fees. There does not exist a disparity in
13 access to funds. Respondent's Income and Expense Declarations filed March 3, 2026 indicates
14 he has \$200 in "cash and checking accounts," while Petitioner left blank the "cash and checking"
15 section. Accordingly, each party shall bear their own attorney fees and costs.

16 2) The Court GRANTS Petitioner's request for guideline child support. In accordance with the
17 XSpouse report attached hereto and incorporated herein, Respondent is obligated to pay
18 Petitioner child support in the amount of \$1,465 per month, effective February 1, 2026.

19 3) Respondent owes Petitioner \$4,395 in guideline child support arrears for the period of February 1,
20 2026 – April 30, 2026. Respondent shall pay Petitioner an additional \$250 per month until this
21 balance is paid in full.

22 4) Commencing 5/1/26, all payments set forth above shall be made by the 1st of every month.

23 5) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

24 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).